IN THE HIGH COURT OF SOUTH AFRICA

GAUTENG DIVISION, PRETORIA

BEFORE THE HONOURABLE JUSTICE KUMALO J
ON THIS 19th OF AUGUST 2025
NUMBER 20 ON THE ROLL

CASE NO: 2025 - 137857

In the *ex parte* matter between:

PETER ANDREW FAUCITT **APPLICANT**

(Identity Number: 520430 5708 18 5)

And

JACQUELINE FAUCITT **FIRST RESPONDENT**

(Identity Number: 570607 0898 18 1)

DANIEL JAMES FAUCITT **SECOND RESPONDENT**

(Identity Number: 820715 5300 18 2)

REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD **THIRD RESPONDENT**

(Registration Number: 2011/005722/07)

REGIMA SKIN TREATMENTS CC **FOURTH RESPONDENT**

(Registration Number: 1992/005371/23)

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GAUTENG DIVISION
PRETORIA

VILLA VIA ARCADIA NO 2 CC **FIFTH RESPONDENT**

(Registration Number: 1996/004451/23)

STRATEGIC LOGISTICS CC **SIXTH RESPONDENT**

(Registration Number: 2008/136496/23)

FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK **SEVENTH RESPONDENT**

ABSA BANK LIMITED **EIGHTH RESPONDENT**

THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION **NINTH RESPONDENT**

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This Order is made an Order of Court by the Judge whose name is reflected hereon, duly stamped by the Registrar of the Court and is submitted electronically to the parties or their legal representatives by e-mail. This Order is further uploaded to the electronic file of this matter on CaseLines by the Judge or his/her Secretary/Registrar. The date of this Order is deemed to be 19th of August 2025.

DRAFT ORDER

HAVING HEARD Counsel for the Applicant and having read the papers filed on record an order is granted in the following terms:

1. Having dispensed with the forms and service provided for in the Rules of this above Honourable Court and having disposed of the relief prayed by way of urgency in terms of Rule 6(12)(a);

2. Pending the final adjudication of the relief sought under **PART B** of the Notice of Motion, the First and Second Respondents:

   2.1 Are interdicted and directed to surrender forthwith to the Applicant their banking credit, *and/or* cheque, *and/or* debit cards, coupled to the banking accounts of the Third to Sixth Respondents, held with the Seventh *and/or* Eighth Respondents;

   2.2 Are interdicted and restrained forthwith from opening any new banking accounts for the Third to Sixth Respondents with any financial institution/s, and from transacting thereon;

   2.3 Are interdicted and restrained forthwith from applying to the Seventh *and/or* Eighth Respondents for new cards, or payment facilities on the banking accounts of the Third to Sixth Respondents;

   2.4 Are interdicted and restrained forthwith from transacting on the banking accounts of the Third to Sixth Respondents, held with the Seventh *and/or* Eighth Respondents;

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2.5 The First and Second respondents are interdicted and restrained from dealing with the business (and the administration thereof) of the Third to Sixth Respondents, *and/or* their employees, *and/or* their partners, *and/or* their clientèle, in any manner in which any may sustain any prejudice;

2.6 The Applicant is authorised to take control of the financial affairs of the Third to Sixth Respondents, and to that end is entitled to immediately begin transacting on those accounts, for those corporations, to the exclusion of the First, and Second Respondents;

2.7 The Applicant is authorised to appoint necessary experts, including the accountant cited in the founding affidavit, at the cost of the Third to Sixth Respondents, so that a proper forensic investigation may be conducted into their affairs, and into the affairs of the First and Second Respondents relating to payments made by the Third to Sixth Respondents, and to that end to have unfettered insight into the First and Second Respondent's financial affairs, and into the financial affairs of the Third to Sixth Respondents ;

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2.8 The First and Second Respondents are interdicted and directed to participate in the forensic investigation of the Third to Sixth Respondents, and to that end:

2.8.1 Are interdicted and restrained from concealing or destroying any documentary (and electronic) records pertaining to the financial administration of the Third to Sixth Respondents;

2.8.2 Are interdicted and directed to surrender forthwith to the Applicant all documentation (electronic, and otherwise) within their possession relating to the administration (financial and otherwise) of the Third to Sixth Respondents, and all login details and passwords to any banking and other online facilities relating thereto; *and to*

2.8.3 Are interdicted and directed to answer all questions put to them in regard to the forensic investigation, by the Applicant, and the experts appointed by him, honestly, and forthrightly;

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3. Should **PART A** of the Notice of Motion not be opposed:

3.1 No order as to costs;

3.2 The Applicant is permitted to supplement his papers, as he may deem necessary, for the purposes of **PART B** below;

4. In the event that **PART A** of this Notice of Motion is opposed:

4.1 The costs thereof are reserved for determination under **PART B** of the Notice of Motion;

4.2 The Applicant, and the opposing Party/Parties are permitted to supplement their papers, as they may deem necessary, for the purposes of **PART B** below;

5. **PART B** shall be adjudicated on a date, and at a time appointed by the Registrar;

6. The Applicant is directed to serve this application on the Respondents simultaneously with the service of this Order upon them, and the Respondents are entitled to set the matter down, as per PART A, upon 48 Hour notice to the Applicant, so that they may be heard in Court.

BY ORDER:

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THE JUDICIARY REPUBLIC OF SOUTH AFRICA

REGISTRAR

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